

IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
FAMILY DIVISION

IN RE: THE MARRIAGE OF

SARAH HANSON,
Petitioner,

Case No.: 24-DR-1150

and

Division: D

CHRISTOPHER HANSON,
Respondent,

**HUSBAND/RESPONDENT’S MOTION TO TRANSFER VENUE AND/OR SECOND
VERIFIED MOTION TO
DISQUALIFY JUDGE AYERS**

The Respondent, CHRISTOPHER HANSON files this Motion to disqualify Judge Ayers and in support thereof, states:

1. This Motion is made pursuant to Florida Statute § 38.10 and Florida Rule of Judicial Administration 2.330, which allow for the disqualification of a judge where there is a well-founded fear that the judge cannot act impartially or where there is evidence of bias.
2. “Litigants are entitled to have their disputes resolved by impartial judges. Canon 3 and rule 2.160 emphasize the essential importance of assuring that presiding judges are free from bias and prejudice.” “Berry v. Berry 765 So.2d 855 (Fla. 5th DCA).
3. Florida Statute §38.10 provides that disqualification of the trial Judge is appropriate if there are facts that demonstrate bias against a certain party.
4. Rule of Judicial Procedure 2.330 provides for a party to seek disqualification of the trial Judge if he does not believe he can get a fair process.
5. Husband initially filed a motion to disqualify judge Ayers based upon bias, in favor of Mr. Davis and other attorneys practicing before her over the litigants under her jurisdiction, likely as a manner to keep and gain favor with those who may be able to assist her including a possible run for re-election in 2026. (Docket #112)

6. The court denied the motion noting it to be “legally insufficient” without any explanation or further comment. (Docket #119).

7. Confused over this purported “insufficiency,” Husband filed a motion to vacate, for rehearing, and for a formal written order. (Docket #128).

8. The court, then drafted an order that again failed to address any of the factual allegations husband made nor provide any information whatsoever about any reported “insufficiency” in husband’s motion. (Docket #131).

9. Unfortunately, Judge Ayers’ bias against Husband has only increased with the court’s actions consistently in blatant and damaging contradiction to the relevant facts and law. (Docket #22, 72, 84, 87, 91, 92, 98, 105, 109, 110, 118, 128, 130, 134, 145, 162, 163, 172).

10. Husband incorporates the facts and arguments from the pleadings above along with transcripts of all the hearings (some to be provided upon receipt), and the petition for writ of certiorari in renewing this request for Judge Ayers disqualification based on the additional conduct described below.

11. It is also important to note at the outset, that Judge Ayers (and Mr. Davis) have made multiple negative comments and insinuations about Husband in hearings and pleadings, all without any real description or explanation. (Docket #131, 136, 141).

12. **However, at the April 22, 2025 hearing, when asked about any examples of any emails or statements/sentences from Husband, neither the Court nor Mr. Davis could provide a single example of any inappropriate conduct in this matter.** (Transcript to be provided upon receipt).

13. The Court should compare that to Mr. Davis’s unrefuted misconduct that Husband has described in numerous pleadings and emails, requesting some clarification or response regarding the abuses.

14. Husband's single objective since day one remains reasonable (at least equal/reciprocal discovery) from Wife based on circumstances reviewed with the Court many times very real concerns over hidden assets, concerns which obviously only multiplied throughout a year of delay, obstruction and concealment facilitated by corrupt actions from the bench.

15. Given that Husband was the disclosing party and Wife was the (admitted) non-disclosing party, it's an absolutely absurd position where the Court continues to refuse to allow the non-disclosing spouse to have more than twice as much financial discovery as the disclosing spouse.

16. The only explanation for the course of events described herein is extreme bias in favor and/or against a party or an attorney.

17. Husband has waived any attorney client privilege back in December in an attempt to move this forward efficiently given the toll it's taken on Husband and the children.

18. Still, Judge Ayers acts as only an impediment and advocate against Husband, specifically finding ways to avoid the law and prevent the only discovery or relief Husband has requested for almost exactly a year.

19. Corruption has consequences, and the Hanson family has suffered them in the Hillsborough County Courthouse for a year with no relief.

20. The more one looks at this case, the clearer the proof of corruption becomes, and Husband desperately pleads for relief from the Court's and Mr. Davis's well-documented abuses.

JUDGE AYERS INEXPLICABLY REFUSED TO REQUIRE WIFE AND MR. DAVIS TO COMPLY WITH MANDATORY DISCLOSURES AND THE CERTIFICATE OF COMPLIANCE EVEN WHEN IT'S THE SINGLE ISSUE THAT BROUGHT THE PARTY TO LITIGATION AS HUSBAND EXPLAINED SINCE DAY ONE (DOCKET #22).

21. The parties attended a hearing on February 12, 2025 to address various motions including Husband's motion for contempt and enforcement issued back on October 28, 2024.

22. Despite numerous detailed requests from Husband, with descriptions of the information Mr. Davis needed to provide for compliance, Mr. Davis simply refused to address the issue.

(Docket #22, 84, and 145).

23. At the hearing on February 12, 2025, Mr. Davis made it clear that Wife was not swearing to what's required in the rule in the mandatory disclosures and certificate of compliance:

I've been doing this for almost 27 years and I don't know that she has the -- for example, I'm looking at one. No. 8, 12 months of banking account statements. She provided Chase, Fifth Third, Fifth Third, two of them are by minor children. I don't think she has to say and none other exists."

24. The following exchange makes it very clear that Judge Ayers (while looking for a reason to rule in Mr. Davis's and Wife's favor) that she understood the deficiency in Wife's certificate of compliance relating to the mandatory disclosures, as the Court read Rule 12.285(j):

"THE COURT: The party must swear or firm under oath that the disclosure is complete, accurate and in compliance with this rule. Unless the party indicates otherwise with specificity in the certificate of compliance.

MR. HANSON: I mean, that couldn't be more clear. And that's what they're trying to avoid and why isn't the Court curious about why they're trying to avoid that? Why is that big deal?" (Docket #158, page 68, Line 12-19.)

25. Especially given that financial disclosures are at the core of this case and all of this family's suffering, it is incredibly egregious for the Court to actively and knowingly excuse Mr. Davis and Wife from following the law.

26. Of course, it was obvious the bias is intentional given the months of excusing and shielding Mr. Davis from any consequences whatsoever for his grossly unethical conduct combined with Judge Ayers refusal to either disqualify herself or identify some insufficiency in Husband's motion.

27. Instead of simply requiring Wife to follow the law which very likely would have provided Husband with answers to move the case forward, Judge Ayers went beyond what one can consider her judicial role in refusing to hold Wife and Mr. Davis in contempt for the several months of non-compliance.

JUDGE AYERS BIAS IS BECOMING MORE PROMINENT AND HARMFUL TO THE FAMILY UNDER HER JURISDICTION.

28. The parties attended a hearing on the Court's order to show cause on April 22nd, 2025.

29. It became clear during that hearing that neither Mr. Davis nor the Court had a single example of even an inappropriate sentence from Husband.

30. What bothers Mr. Davis so much about emails from Husband is that he's forced to encounter the truth, which will certainly result in Husband getting the relevant discovery under the law, raising even more questions about his and Judge Ayers' conduct.

31. Given the history here and Judge Ayers recent handling of issues at the April hearings, it's very possible that Judge Ayers, after inexplicably shielding an attorney from any consequences for his unethical behavior for several months with an unrepresented litigant, is acting out of self-preservation.

32. Given the level of ethical concerns here, Judge Ayers may be actively working against Husband in order to assist Wife and Mr. Davis in burying the records so as to avoid further scrutiny of her conduct in this matter.

33. The order of hearings came up during that event, with Husband focusing on the single, simple discovery issue that's existed for nearly a year.

34. The parties attended numerous hearings focusing on the Chase subpoena, and if any issue is ripe for adjudication, it's that.

35. One longstanding issue that the parties could have disposed with at the April 4, 2025 hearing is the Chase subpoena, pending since an August 9, 2024 motion on Mr. Davis's objections.

36. Mr. Davis requested an expedited hearing on the updated (post-Motion to void PMA) Chase subpoenas at Docket #149 at paragraph 18.

37. Husband then sent an email on March 4, 2025 agreeing with the requested hearing, and following up to get it set again on March 10, 2025. (Docket #177, p. 4)

38. That is precisely the reason that the CMC was added to the April 4, 2025 hearing, where on March 10, the Court indicated, “A CMC will need to take place to discuss whether the motion to void (doc 146) would need to be heard first.”

39. If there were any issue that deserved attention, it is husband’s discovery one that is truly the core of this dispute as demonstrated consistently for a year now.

40. Instead, Judge Ayers seemed focused on the Guardian ad Litem issue, one where the testimony/facts are closely related with the other motions Mr. Davis had pending on April 4, 2025.

41. Instead of having any concern for judicial efficiency, the Court apparently expected Husband to have a cross-examination prepared that specifically focused on a motion/issue he had no idea the Judge would mention at the hearing.

42. It’s nonsensical to have a witness testify on direct only related to one motion, then have cross that must be directed solely to that motion, and argument on that motion, and then go back into testimony on the next motion, producing several rounds of testimony and argument. Yet, that’s the way Judge Ayers wanted it to go, for some unexplained reason.

43. The pattern tells us that it’s obviously bias and if Judge Ayers can hurt Husband by bringing the kids into the litigation, it seems she is more than happy to do it.

44. What’s more concerning about the Court’s apparent focus on the Guardian ad Litem issue is it’s obviously the one most likely to have a detrimental effect on the children as explained by an independent observer at Docket #169.

45. Husband strongly disagrees with the proposition that the April 4, 2025 hearing offered “due process” related to the Guardian ad Litem issue.

46. The Court’s refusal to allow Husband to complete the cross-examination on a complicated issue like bringing a stranger and litigation into the children’s life through the GAL is completely outrageous, not to mention the complete refusal to hear evidence from Husband on the subject.
(Transcript to be provided).

47. These are actions that seem outside Judge Ayers' role on the bench because the pattern demonstrates how intentionally contrary to the law they often are. (Docket #119 and 128).

48. The Court acknowledged at the April 22, 2025 hearing that it was nonsensical to have the Motion to void hearing without allowing Husband the opportunity for some discovery.

49. We are currently in a posture where Wife (a lawyer) submitted interrogatories to which Husband responded, that produce far more information than Husband is currently seeking from Wife, the spouse who failed to disclose anything at the time of entering the post marital agreement.

50. The Court has failed to follow the law in multiple respects in a manner that has allowed this process to continue far too long.

51. Husband maintains that based upon wife's simple admitted lack of any disclosure in reaching the post marital agreement, discovery into her finances is critically relevant to allowing the case to go forward. (Docket # 84, 91, 97).

52. However, now that Husband has filed the motion to void the post-marital agreement as suggested by Judge Ayers on numerous occasions, she continues to block or at least delay the discovery, perfectly consistent with Mr. Davis's and Wife's interests.

JUDGE AYERS INEXPLICABLY RESCINDED A REQUEST MADE OF MR. DAVIS ONCE HE REFUSED OR FAILED TO DO WHAT THE COURT REQUESTED, EVEN AFTER HUSBAND POINTED OUT THE FAILURE AND INSISTED THAT MR DAVIS PROVIDE THE SUMMARY OF WIFE'S TESTIMONY.

53. Despite many requests from Husband in email and in pleadings, Mr. Davis has never reduced any argument in this matter to writing.

54. The plan seemed to be a trial by ambush for the April 4, 2025 hearing although there were no surprise witnesses and no evidence other than some vague references to relatively minor marital problems grossly exaggerated and distorted.

55. Finally, the Court's request for Mr. Davis to summarize Mrs. Hanson's testimony from the April 4, 2025 hearing allowed for an opportunity to force Mr. Davis to reduce some of his arguments/evidence to writing.

56. Obviously, he's avoided this at all costs throughout several months even when Wife's position is that the welfare of the children are at issue.

57. Mr. Davis didn't want to put anything in writing, instead, wanting the Court to do the dirty work for him of somehow finding grounds to rule in his favor based on the nebulous, one-sided description of a marriage falling apart in a relatively benign manner.

58. Husband filed a motion to strike pleadings based on Mr. Davis's failure to comply with the Court's request.

59. Of course, the corruption continued with Judge Ayers not even willing to ask Mr. Davis why he didn't do the work the Court requested.

60. Judge Ayers excuses Mr. Davis of gross misconduct for months straight, and now, she actively excuses him from following her directives, even when Husband is insisting that he actually reduce the testimony to writing as the Court requested.

61. **The absurdity of Mr. Davis and Judge Ayers attempts to avoid scrutiny became outright embarrassing at the April 22, 2025 hearing.**

62. **They each suggested that it would be even worse for me if Mr. Davis reduced the testimony to writing.**

63. **Of course, that's precisely what I wanted, and when the threat didn't work, Mr. Davis and Judge Ayers decided that Mr. Davis didn't have to do the summary at all.**

64. So the Court's decision, over Husband's objection, to change course, and suddenly not need the summary is absolutely appalling.

65. There is no logical explanation for the Court's change in position other than that "if Mr. Davis doesn't want to do it, then he doesn't have to as long as Judge Ayers is in charge..."

66. The parties attended an October 28, 2024 hearing where the parties were directed to submit memorandums on this subpoena issue.

67. Mr. Davis submitted his late (after being 4 months late in making any attempt to comply with a stipulated obligation).

68. Nevertheless, the Court did what Mr. Davis asked on the issue with no comment on the late submission of his memo, nor the 4 month delay from his stipulated obligation on the issue at the core of the case.

69. The Court's suspicious level of disinterest in Mr. Davis's misconduct is quite concerning especially at the recent hearing where the Court had no concerns with Mr. Davis failing to follow a Court instruction.

70. The Court even refused to require Mr. Davis to follow through with what the Court requested despite Husband's insistence that he follow through, before the Court had its change of heart relating to having Mr. Davis actually reduce some argument or evidence to writing.

71. The pattern of allowing Mr. Davis to control the litigation in this matter despite a complete lack of effort towards discovery, evidence, and argument is very disturbing.

72. Mr. Davis has now successfully obstructed discovery into the single issue this family had for nearly a year, with a 4 month delay at the start, that the Court has completely excused without even requiring comment from Mr. Davis.

73. The Court needed the summary, then Husband pointed it out wasn't done, and the Court changes course to say, "well Mr. Davis doesn't have to do it."

74. This is reminiscent of how Mr. Davis seems to choose the hearings he wants to attend vs. those he doesn't want to attend.

75. Despite being at the center of the arguments Husband offered at the January 9, 2025 hearing, the Court simply allowed him to avoid the hearing altogether apparently without approval, and certainly without any consequences.

76. That's all consistent with Judge Ayers conduct at the first hearing Husband was forced to attend without an attorney:

JUDGE AYERS BIAS AGAINST AND EVEN CONTEMPT AND DISDAIN FOR HUSBAND WAS ON FULL DISPLAY DURING THE APRIL 4, 2025 HEARING WHEN SHE ROLLED HER EYES AT HUSBAND, DENIED IT WHEN CONTEMPORANEOUSLY ACCUSED OF IT, OFFERED TO CHECK THE VIDEOTAPE, AND HAS NOW REFUSED TO CHECK OR PROVIDE THE TAPE FOR ALL TO SEE CLEARLY WHAT HAPPENED.

77. The April 4, 2025 transcript will provide additional details about Judge Ayers rolling her eyes at Husband, denying it, offering to check the tape, and then refusing when requested by Husband.

78. It's worse than Judge Ayers simply rolling her eyes at Husband.

79. She lied about it right after doing it, and she knew she lied about it.

80. Husband requests that Judge Ayers and/or the Hillsborough County Clerk/Sheriff's office/bailiff office provide the videotape especially if Judge Ayers is still inclined to deny the motion.

81. There's a long history of extreme bias and attempts to shield Mr. Davis from accountability for his actions are detailed at Docket #'s 72, 91, and in all of the hearings at Docket #'s 90, 109, 118, 152, 155, 158

82. In fact at the Hearing on April 22, 2025, the Court suggested that she was simply disinterested in or she had no authority or jurisdiction to address ethical and discovery violations.

83. That is a wild proposition, but the fact that the Court takes this position in relation to discovery and ethical violations that harm Husband is completely consistent with the Court's incredibly biased handling of this matter.

CONCLUSION:

84. Given the Court's handling of severe ethical concerns in this matter, Judge Ayers may be actively working against Husband in order to assist Wife and Mr. Davis in burying the records so as to avoid further scrutiny of her own conduct.

85. In fact, the long history referenced above and throughout the file reveal a pattern which has no explanation other than corruption, dishonesty, and a complete lack of good faith and respect for an opposing litigant.

86. Judge Ayers is guided by how Mr. Davis wants the case to proceed as demonstrated many times over, most recently, in a hearing on April 4, 2025, and again on April 22, 2025 although neither transcript is currently available. (Docket #'s 84, 87, 91, 92, 98, 105, 109, 110, 118, 128, 130, 134, 145, 162, 163, 172).

87. Judge Ayers has demonstrated that she has no concerns whatsoever for husband nor the children involved in this litigation.

88. It's obvious that wife and Mr. Davis are hiding evidence of marital assets.

89. Judge Ayers has demonstrated that she is willing to go to all costs to protect Mr. Davis from his own misconduct and follow his directions on how the case is to proceed. (Docket #'s 84, 87, 91, 92, 98, 105, 109, 110, 118, 128, 130, 134, 145, 162, 163, 172).

90. It's clear Judge Ayers cannot address this particular case in a fair manner that will allow this family to move forward.

91. Husband can only hope that Judge Ayers will ultimately decide to do the right thing as her conduct in this case has strayed far outside the bounds of her judicial role into a very disturbing and ugly place for Hillsborough county families.

92. Having judge Ayers continue on the present case, puts this family in danger of never being able to move on as the Florida system intends.

93. It's inconceivable that Judge Ayers continues to keep the parties in such unfair positions when Husband has made his due process concerns so prominent while always maintaining that his pursuit of this discovery is the motivating factor in all of the motions and other allegations Wife has since made since her preemptive attack with 16 pages of interrogatories seeking financial information going back 3 years. (Docket #22).

94. Judge Ayers intentionally ignores the obvious to provide cover and support for the absurd, unethical and dangerous.

95. The Court continues to ignore the law, and the family's interests in getting this issue behind them, precisely in line with what Mr. Davis wants, and what Husband's 2 attorneys refused to assist with after conferences with Mr. Davis.

96. Husband has even pleaded with the Court about these delays putting off decisions on 2 surgeries and other health related concerns, yet the Court continues to put off addressing this one core issue and worse, Mr. Davis's inappropriate conduct. (Docket #22, 72).

97. It's necessary that the Court transfer the case to a new Judge, or ideally, to a new venue such as Pasco County where Wife resides so that, the litigants have "their disputes resolved by impartial judges" "free from bias and prejudice" in assessing these issues critical to the litigants and children's future well being as required by Berry v. Berry 765 So.2d 855 (Fla. 5th DCA).

98. Given the evidence of bias in favor of Mr. Davis, Ms. Hodz, and the other attorneys involved, at the expense of Husband's due process rights and other interests, it's obvious Husband has no change at fair process in front of Judge Ayers, and likely in Hillsborough county at all.

WHEREFORE, the Respondent, CHRISTOPHER HANSON, respectfully requests the Court enter an Order:

A. Transferring the matter to a new venue such as Pasco County where Wife resides,

- B. Disqualifying Judge Ayers from any further action on the case.
- C. Vacating any prior Court orders limiting Husband's rights to discovery,
- D. Assigning a new Judge to expedite the core issue in the case – Husband's right to discovery.
- E. Requiring Ms. Hodz to produce all file materials including those documents and text messages to Husband as referenced in prior pleadings before this Court.
- F. Scheduling and holding an evidentiary hearing where at a minimum, Husband, Mr. Davis and Ms. Hodz can offer testimony about the first and only call between counsels, and the call that took place between Husband and formere counsels just after the attorney conference.
- G. Granting Husband attorney's fees and costs and any other sanctions this Court may deem appropriate.
- H. Granting Respondent all other and further relief and damages as this and any future Court may deem just and necessary including but not limited to transferring venue as will be requested in a motion in draft form..

Verification of Husband pursuant to F.S. 92.525

Under Penalties of Perjury, I, Chris Hanson, declare that I have read the foregoing Verified Motion to disqualify, and that the facts are true.

4-23-25
Date

Chris Hanson
Signature

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished to all designated on e-service list on this 23th day of April, 2025.

/s/ Chris Hanson
Chris Hanson
Primary E-Mail: cahanson77@yahoo.com

